

26SMCV00110 26SMCV00110

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-06-30

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Case Number: 26SMCV00110 Hearing Date: June 30, 2026 Dept: N

TENTATIVE RULING

Defendant 1228 Berkley, LLC's Motion to Compel Plaintiff Shawn Nadery's Responses to Form Interrogatories, Set One is DENIED as MOOT.

Defendant 1228 Berkley, LLC's Motion to Compel Plaintiff Shawn Nadery's Responses to Special Interrogatories, Set One is DENIED as MOOT.

Defendant 1228 Berkley, LLC's Motion to Compel Plaintiff Shawn Nadery's Responses to Requests for Production of Documents, Set One is DENIED as MOOT.

Defendant 1228 Berkley, LLC's Motion to Deem the Truth of the Matter Specified in Requests for Admission, Set One is DENIED as MOOT.

Defendant 1228 Berkley, LLC's Requests for Monetary Sanctions are GRANTED in the reduced amount of \$1,550, payable by Plaintiff Shawn Nadery to Defendant 1228 Berkley, LLC and defense counsel within thirty (30) days of entry of this order.

Defendant 1228 Berkley, LLC to give notice.

Defendant 1228 Berkley, LLC ("Defendant") served Plaintiff Shawn Nadery ("Plaintiff") with its Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admission, Set One on February 20, 2026. (Mots., Wallack Decls. ¶ 5.) Counsel met and conferred about responses on several occasions, with an extension to May 1, 2026 granted, but Plaintiff failed to respond before the motions were filed. (Mots., Wallack Decls. ¶¶ 6-11.) However, in opposition to the motion, Plaintiff represents that responses were served on May 18, 2026. (Opp'n, Angulo Decl. ¶ 8.) Accordingly, Defendant 1228 Berkley, LLC's Motion to Compel Plaintiff Shawn Nadery's Responses to Form Interrogatories, Set One is DENIED as MOOT; Defendant 1228 Berkley, LLC's Motion to Compel Plaintiff Shawn Nadery's Responses to Special Interrogatories, Set One is DENIED as MOOT; Defendant 1228 Berkley, LLC's Motion to Compel Plaintiff Shawn Nadery's Responses to Requests for Production of Documents, Set One is DENIED as MOOT; and Defendant 1228 Berkley, LLC's Motion to Deem the Truth of the Matter Specified in Requests for Admission, Set One is DENIED as MOOT.

Defendant 1228 Berkley, LLC's Requests for Monetary Sanctions are GRANTED in the reduced amount of \$1,550, payable by Plaintiff Shawn Nadery to Defendant 1228 Berkley, LLC and defense counsel within thirty (30) days of entry of this order.